

Karnataka Valuation & E-Registration (KAVERI - 2.0)

Government of Karnataka

Functional Requirement Specifications

For KAVERI 2.0

Department of Stamps & Registration
Government of Karnataka

Re-registration of Refused Documents

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Acronyms

CSG	Centre for Smart Governance
DR	District Registrar
EC	Encumbrance Certificate
MIS	Management Information System
SR	Sub-Registrar
SRO	Sub-Registrar Office
DEO	Data entry operator

Revision History

Date	Version	Prepared by	Reviewed by	Description
24-06-2024	1.0	Arugolli Subhash	Rajesh Hanbal	Submitted for approval of the nodal officer of the department
11-11-2024	1.1	Pavan Deshapande	Rajesh Hanbal	Revised the flow to handle the documents refused in Kaveri 1 and before Kaveri.
22-05-2025	1.2	Pavan Deshapande	Rajesh Hanbal	Changes to the flow as suggested in the mail dated 16-01-2025.
02-06-2025	1.3	Pavan Deshapande		Incorporated the changes suggested in the meeting chaired by the principal secretary.
16-06-2025	1.4	Pavan Deshapande		Incorporated the changes suggested in the meeting conducted on 09-06-2025

1 Introduction

The Department of Stamps and Registration (henceforth referred to as “department”) is the custodian of registered public records such as Registration of Marriages and Firms, Documents about transactions, namely sale, transfer or gift of immovable properties, Mortgage, Power of Attorney, wills and many more. Maintenance and preservation of these critical public records is the prime responsibility of the department. The records or the information associated with registered records are to be made available to the public when requested through defined procedures. The department is also responsible for collecting stamp duty on behalf of the Government for specified transactions. The services are provided through 259 Sub-Registrar Offices (SROs), under the supervision of 35 District Registrar Offices, spread across the state.

The department has computerised the delivery of these services through the development of Kaveri software. The department's KAVERI Online service is a web-based application that provides an interface to Applicants required for documents, marriage, and firm registration. It enables Applicants to know the details of stamp duty, property guidelines value, data entry for document registration and marriage registration, etc. The list of modules of Kaveri 2.0 is available in Annexure 1.

2 Document scope

This document is a Functional Requirement Specification (FRS) describing the functional features of the **re-registration** module in Kaveri 2.0. The document is prepared by the Centre for Smart Governance (CSG) and has been submitted for department approval. The intended audience of the document is the departmental approving authority and the development team.

The document was prepared through document analysis and departmental consultation. The department shared the high-level requirements (Annexure 2). Following this, the CSG team analysed the requirements and prepared clarificatory questions, which were discussed with the department on 26/10/2023, 22/10/2024 and 20/05/2025. The questions and responses are documented in Annexure 3.

3 Overview of the function

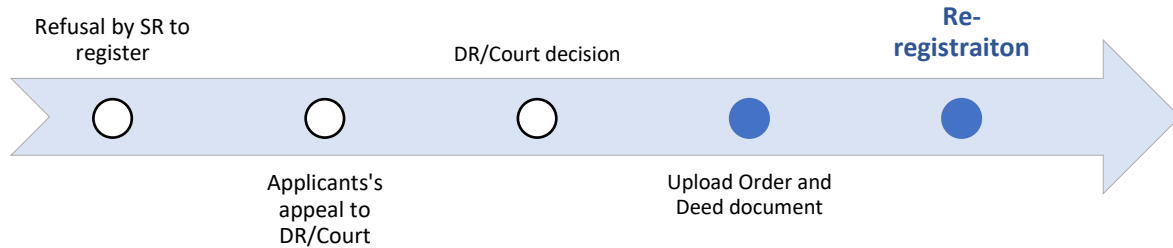


Fig: Re-registration function in Document registration.

The re-registration function is part of the document registration module. In the normal course of document registration, upon presentation of the document for registration, the document is registered, and the SR makes an entry in Book 1. However, a Sub-Register can refuse to register a document upon its presentation¹. In such cases, an entry is made in Book 2, and the document is not registered. However, the applicant can appeal against such an order to the District Registrar (DR)²/Any competent court within 30 days from the date of refusal. Upon the instructions of the DR/Court, the document is registered by the SR as if it were presented for the first time, with the usual procedure of document registration³. Re-registration specifically concerns document registrations previously refused by SR but now permitted by the DR⁴/Court.

The re-registration of a refused document has the following scenarios, and they are covered within the scope of this document, as outlined below,

1. Order issuing authority

- District registrar.
- Court

2. Document refusal timeline

- Documents refused in Kaveri 2:** The documents refused by the SR in Kaveri 2 will be shown in Book 2.
- Documents refused in Kaveri 1:** Documents refused by the SR in Kaveri 1 will appear in Book 2. This includes two specific scenarios:
 - Document status:** Documents listed in Book 2 as refused documents and Book 1 that are pending with the 'refused' flag set to true.
 - Data Quality:** Condition of the data available in the database (Complete and Partial).

the table below explains the scenarios.

		Document Status	
		Book 2	Book1
Data Quality	Complete	Yes	No
	Partial	No	Yes

¹ Vide section 71 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023.

² Vide section 72 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023.

³ Vide sections 58-60 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023.

⁴ The appellate order can also be from the courts apart from the district registrar.

- C. Documents refused before Kaveri:** The documents which are refused by an SR before Kaveri 1 will be shown under a sub-menu as 'Book 2 others' documents in Book 2. As these documents/applications are not in the system, to bring them under Kaveri 2, the SR has to key in the details to complete the application.

4 Description of the functional requirement

4.1 Actors and their roles

Actor/Interface	Role/Responsibilities
Applicant	- Appeal to DR/Court within 30 days from the date of refusal (Offline). - The applicant re-presents the document along with the order of the DR/Court.
SR	- Seek the DR's approval to add missing data. - Upload the DR/Court order to release the document. - Allocate the applications to the DEO to add the details of the prior Kaveri 1 refused applications. - Verify the details, release from Book 2 and re-register the documents.
DR	- Approve/Reject SR's data addition request. - Issue the order to re-register the document.
Court	Issue the order to re-register the document.
DEO	- Print the endorsements and annexure, take the physical signature of SR and upload them for Digital Signature. - Print and hand over the re-registered document to the applicant.
System	- If the data is fetched, move the application to book 2. - Else, if data is not fetched, move such applications to Book 2-others. - After adding the missing data in the application, move the application to Book 2. - The system should mark the document in Book 2 as registered with the final document number for cross-reference. - The system should make an entry in Book 1 after the re-registration.
Process Triggers	The SR will select the application in Book 2 and initiate a re-registration from the SR login⁵.
Data/Information Required	- Application number/P-Number which is being re-registered - DR/Court order number. - DR/Court order copy. - Date of DR/Court Order. - Name of Presenter (Re-presented by).

⁵ Since the DR suite is yet to be developed at the time of writing of this FRS, the triggers are from the SR login. However, after the integration with DR suite, the trigger will be the DR order overruling the refusal to register by SR.

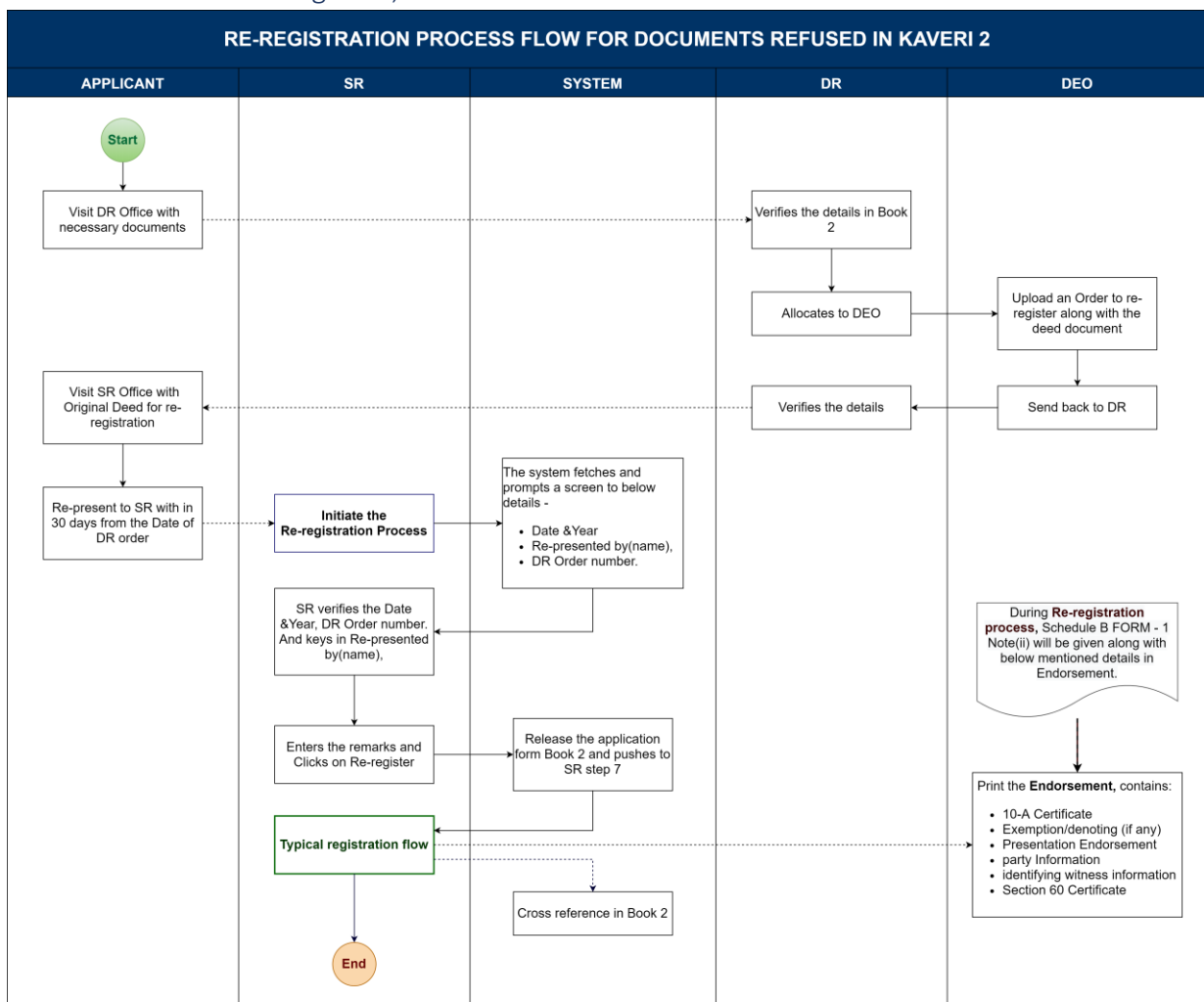
Output documents generated	Endorsement: Contains the details which are typically available in a document registration process. • 10-A Certificate. • Registration Summary, ○ Exemption/denoting (if any). ○ Presentation Endorsement. ○ Party Information. ○ Identifying witness information. • Section 60 Certificate. In addition to the above, the following document is specific to the re-registration process • Schedule B FORM 1 Note(ii) is to be added along with the above-mentioned details.
Internal changes	• Book-2 • Book-1 • MIS Statutory: Form 2
Impact on other modules	• EC Search

4.2 Workflow and Process Description

Below are the scenarios which are in scope for this document.

Sl. No.	Order source	Data Source	Description
1	District Registration	Kaveri 2	Document refused in Kaveri 2, and is being registered in Kaveri 2.
2	Court	Kaveri 2	Document refused in Kaveri 2, and is being registered in Kaveri 2.
3	District Registration	Kaveri 1	Document refused in Kaveri 1, and is being registered in Kaveri 2 (Cases where the documents have complete and missing data).
4	Court	Kaveri 1	Document refused in Kaveri 1, and the document is being registered in Kaveri 2 (Cases where the documents have complete and missing data).
5	District Registration	Prior Kaveri	Document refused before Kaveri, and the document is being registered in Kaveri 2.
6	Court	Prior Kaveri	Document refused in Kaveri 1, and the document is being registered in Kaveri 2.

4.2.1 Scenario 1: Documents which are refused in Kaveri 2 are being registered by the order of the District Registrar,



Appeal to DR:

The applicant collects the refusal endorsement from the SR, makes an appeal to the DR for verification of the details, and requests that the DR issue an order to re-register the document.

- i) DR views the document in Book 2.
- ii) Verifies the details and issues an order in favour of the applicant.
- iii) DR enters the following details
 - (1) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (2) Appeal Date: Mandatory field (calendar).
 - (3) DR Order Date: Mandatory field (calendar).
- iv) DR allocates to DEO to upload the documents.
 - (1) DR Order: Provision to upload DR order, A PDF of max size 5 MB.
 - (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- v) DEO sends back to DR for verification.
- vi) DR verifies the details and completes the process.
- vii) Applicant visits the SR office and re-presents the document once again.
- viii) Request SR to Re-register the document.

Re-registration:

- i) The applicant visits the SRO with the DR order and other required documents.
- ii) SR opens the '**Book 2**' dashboard, locates the document in the list, and clicks on the release button.
- iii) The system will prompt SR to verify and following details.
 - (1) Year of Registration.
 - (2) Appeal Date
 - (3) DR Order Number.
 - (4) DR Order Date.
- iv) The SR Keys in the presenter's name and Remarks, and clicks on Re-register to proceed further.
 - (1) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (2) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- v) After keying in the details, SR clicks the 'Save and Continue' button, and the application will proceed to Step 7 of SR.
- vi) Then, the typical registration flow is to be followed

4.2.2 Scenario 2: Documents which are refused in Kaveri 2 are being registered by the order of the Court

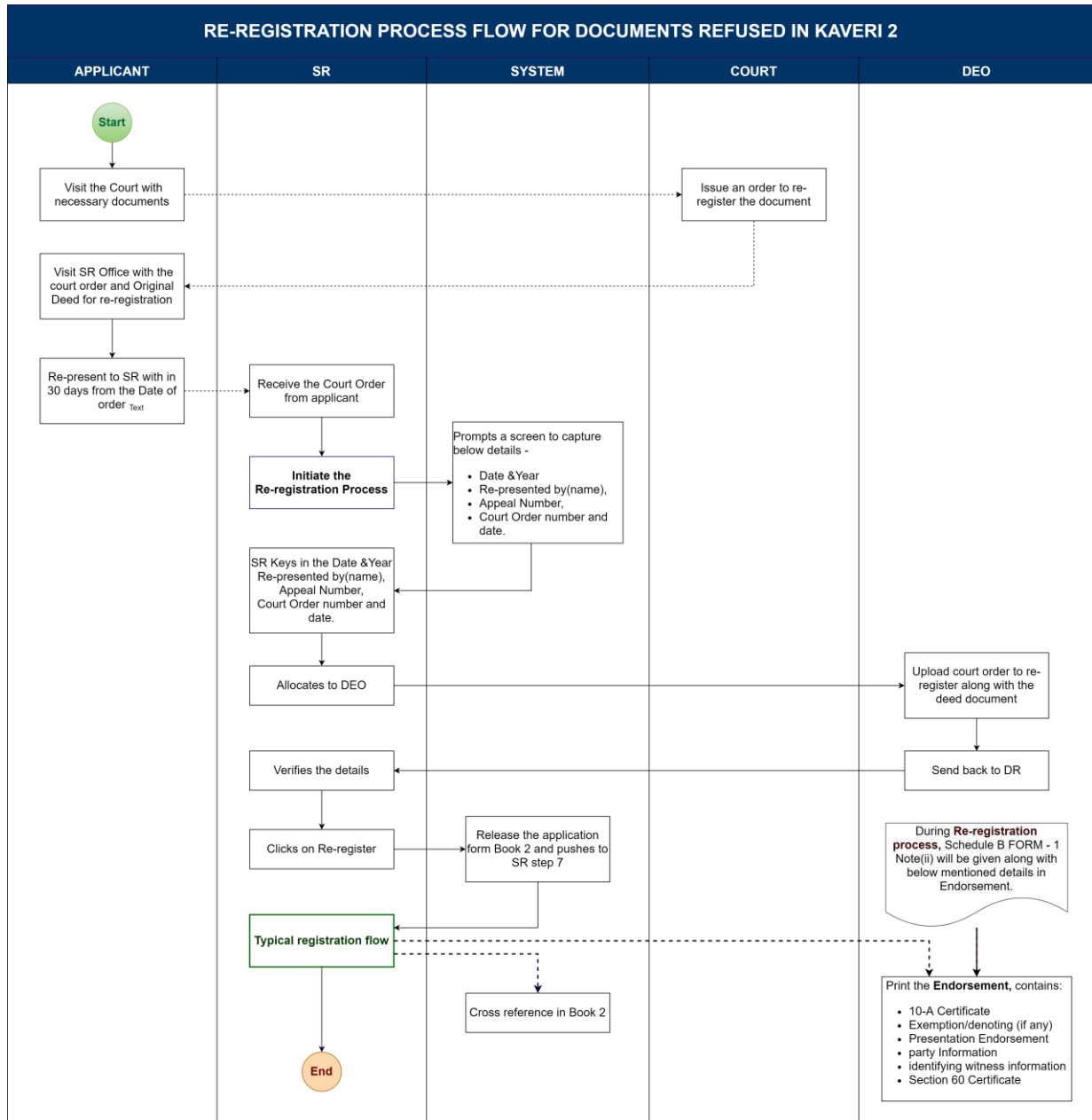


Figure 2: Activity diagram to re-register a document refused in Kaveri 2 with a Court order

Appeal to Court:

The applicant collects the refusal endorsement from the SR, makes an appeal to the court for verification of the details, and requests that the DR issue an order to re-register the document.

- i) The Court verifies and issues an order to re-register.
- ii) Applicant visits the SR office and re-presents the document once again.
- iii) Request SR to Re-register the document.

Re-registration:

- i) The applicant visits the SRO with the Court order and other required documents.
- ii) SR opens the '**Book 2**' dashboard, locates the document in the list, and clicks on the release button.

- iii) The system will prompt SR to enter the following details.
 - (1) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (2) Appeal Date: Mandatory Field (Calendar)
 - (3) Court Order Number: Mandatory field, the alphanumeric field with a limit of 25 characters.
 - (4) Court Order Date: Mandatory field, calendar.
 - (5) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (6) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- iv) After keying in the details, SR allocates to DEO to upload the documents.
 - (1) Court Order: Provision to upload the Court order, A PDF of max size 5 MB.
 - (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- v) DEO sends back to SR for verification.
- vi) SR verifies the details and clicks the 'Save and Continue' button, and the application will proceed to Step 7 of SR.
- vii) Then, the typical registration flow is to be followed.

4.2.3 Scenario 3: Documents which are refused in Kaveri 1 are being registered by the order of the District Registrar

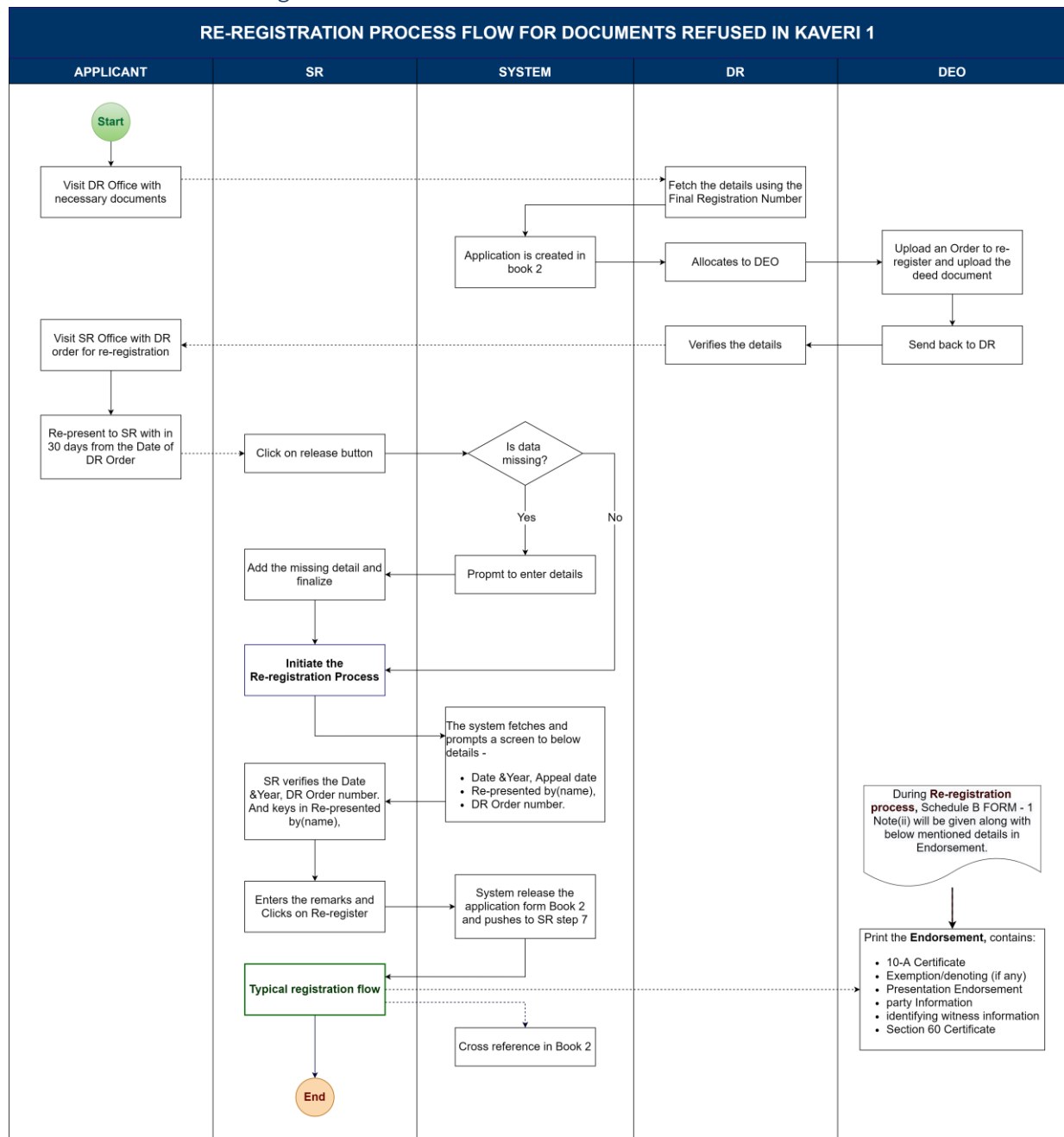


Figure 3: Activity diagram to re-register a document refused in Kaveri 1 with the DR order.

Appeal to DR:

The applicant collects the refusal endorsement from the SR, makes an appeal to the court for verification of the details, and requests that the DR issue an order to re-register the document.

- i) DR tries to fetch the document using the final registration number.
- ii) The system will create an application book 2.
- iii) DR enters the following details
 - (1) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (2) Appeal Date: Mandatory field (calendar).
 - (3) DR Order Date: Mandatory field (calendar).

- iv) DR allocates to DEO to upload the documents.
 - (1) DR Order: Provision to upload DR order, A PDF of max size 5 MB.
 - (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- v) DEO sends back to DR for verification.
- vi) DR verifies the details and completes the process.
- vii) Applicant visits the SR office and re-presents the document once again.
- viii) Request SR to Re-register the document.

Re-registration:

- i) The applicant visits the SRO with the DR order and other required documents.
- ii) SR opens the '**Book 2**' dashboard, locates the document in the list, and clicks on the release button.
 - (1) If the data is fetched, then the system will prompt SR to verify the following details.
 - (a) Year of Registration.
 - (b) Appeal Date.
 - (c) The DR Order Number.
 - (d) The DR Order Date.
 - (2) Else, the system will prompt the SR to add the missing details.
 - (a) Property details.
 - (b) Schedule details.
 - (c) The system displays a summary. The SR clicks on the finalise button to complete the data addition.
 - (3) Then the SR will verify the following
 - (a) Year of Registration.
 - (b) Appeal Date.
 - (c) The DR Order Number.
 - (d) The DR Order Date.
 - (4) Then the SR keys enter the following details.
 - (a) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (b) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- iii) After keying in the details, SR clicks the 'Save and Continue' button, and the application will proceed to Step 7 of SR.

4.2.4 Scenario 4: Documents which are refused in Kaveri 1 are being registered by order of the Court

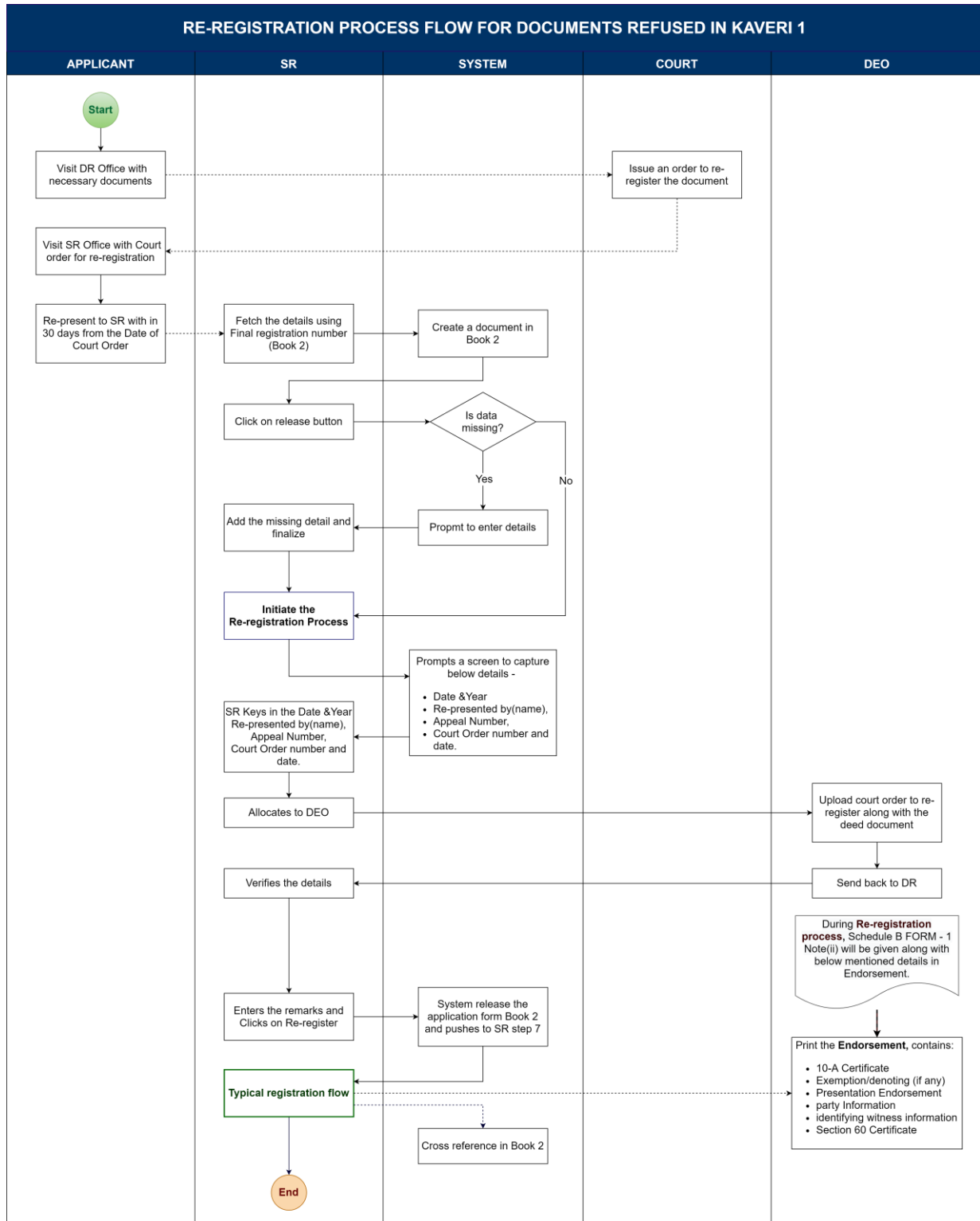


Figure 4: Activity diagram to re-register a document refused in Kaveri 2 with the Court order

Appeal to Court:

The applicant collects the refusal endorsement from the SR, makes an appeal to the court for verification of the details, and requests that the DR issue an order to re-register the document.

- i) The Court verifies and issues an order to re-register.

- ii) Applicant visits the SR office and re-presents the document once again.
- iii) Request SR to Re-register the document.

Re-registration:

- i) The applicant visits the SRO with the Court order and other required documents.
- ii) The SR tries to fetch the details using the final registration number
- iii) The system will create an application in Book 2.
- iv) The SR clicks on the release button to proceed further.
 - (1) If the data is fetched, then the system will prompt SR to enter the following details.
 - (a) Appeal Date: Mandatory Field (Calendar)
 - (b) The Court Order Number: Mandatory field, the alphanumeric field with a limit of 25 characters.
 - (c) The Court Order Date: Mandatory field, calendar.
 - (2) Else, the system will prompt the SR to add the missing details.
 - (a) Property details.
 - (b) Schedule details.
 - (c) The system displays a summary. The SR clicks on the finalise button to complete the data addition.
 - (d) After verifying the summary, the SR will enter the following
 - (e) Appeal Date: Mandatory Field (Calendar)
 - (f) The Court Order Number: Mandatory field, the alphanumeric field with a limit of 25 characters.
 - (g) The Court Order Date: Mandatory field, calendar.
 - (3) Then the SR keys enter the following details.
 - (a) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (b) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (c) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- v) After keying in the details, SR allocates to DEO to upload the documents.
 - (1) Court Order: Provision to upload the Court order, A PDF of max size 5 MB.
 - (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- vi) DEO sends back to SR for verification.
- vii) SR verifies the details and clicks the 'Save and Continue' button, and the application will proceed to Step 7 of SR.

4.2.5 Scenario 5: Documents refused before Kaveri and being registered by the order of the District Registrar

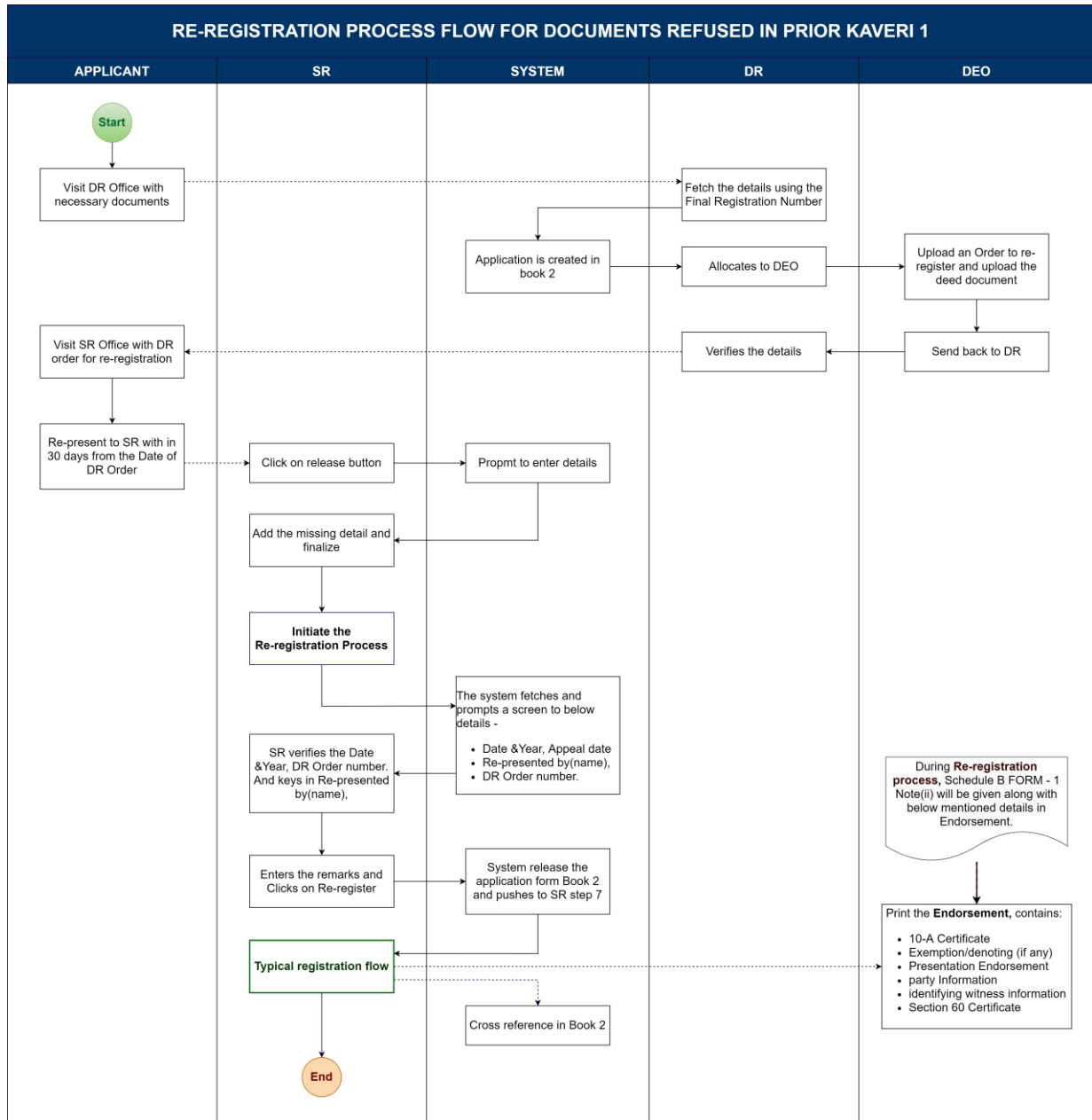


Figure 5: Activity diagram to re-register a document refused before Kaveri 1 with the DR order.

Appeal to DR:

The applicant collects the refusal endorsement from the SR, makes an appeal to the court for verification of the details, and requests that the DR issue an order to re-register the document.

- i) DR tries to fetch the document using the final registration number.
- ii) The system will create an application book 2.
- iii) DR enters the following details and uploads the documents.
 - (1) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (2) Appeal Date: Mandatory field (calendar).
 - (3) DR Order Date: Mandatory field (calendar).
- iv) DR allocates to DEO to upload the documents.
 - (1) DR Order: Provision to upload DR order, A PDF of max size 5 MB.

- (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- v) DEO sends back to DR for verification.
- vi) DR verifies the details and completes the process.
- vii) Applicant visits the SR office and re-presents the document once again.
- viii) Request SR to Re-register the document

Re-registration:

- i) The applicant visits the SRO with the DR order and other required documents.
- ii) SR opens the '**Book 2**' dashboard, locates the document in the list, and clicks on the release button.
- iii) As the details are not available, the system will prompt SR to enter the following details.
 - (1) Party Details.
 - (2) Property details.
 - (3) Schedule details.
 - (4) Payment Details.
 - (5) The system displays a summary. After verifying the details, the SR clicks on the finalise button to complete the data addition.
 - (6) The SR will verify the following details.
 - (a) Year of Registration.
 - (b) Appeal Date.
 - (c) The DR Order Number.
 - (d) The DR Order Date.
 - (7) The SR enter the following details.
 - (a) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (b) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- iv) After keying in the details, SR clicks the 'Save and Continue' button, and the application will proceed to Step 7 of the SR.

4.2.6 Scenarios 6: Documents refused before Kaveri and being registered by the order of the Court.

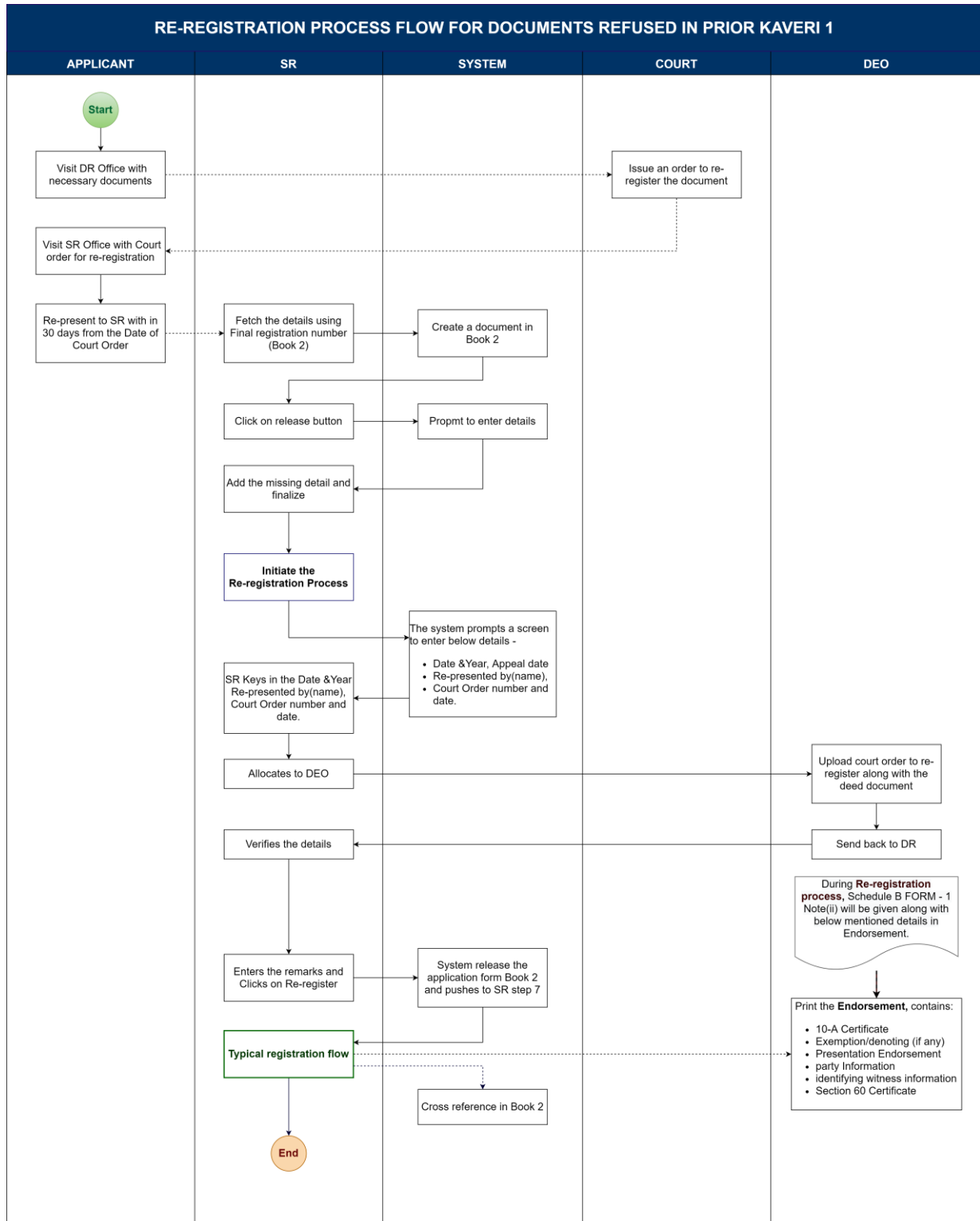


Figure 6: Activity diagram to re-register a document refused before Kaveri 1 with the Court order

Appeal to Court:

The applicant collects the refusal endorsement from the SR, makes an appeal to the court for verification of the details, and requests that the DR issue an order to re-register the document.

- i) The Court verifies and issues an order to re-register.

- ii) Applicant visits the SR office and re-presents the document once again.
- iii) Request SR to Re-register the document

Re-registration:

- i) The applicant visits the SRO with the Court order and other required documents.
- ii) The SR tries to fetch the details using the final registration number.
- iii) The system will create an application in Book 2.
- iv) As the details are not available, the system will prompt SR to enter the following details.
 - (1) Party Details.
 - (2) Property details.
 - (3) Schedule details.
 - (4) Payment Details.
 - (5) The system displays a summary. After verifying the details, the SR clicks on the finalise button to complete the data addition.
- v) The SR clicks on the release button to proceed with re-registration.
- vi) The system will prompt SR to enter the following details,
 - (1) Appeal Date: Mandatory Field (Calendar)
 - (2) The DR Order Number.
 - (3) The DR Order Date.
 - (4) Year of Registration: Mandatory field (drop-down) starting with 1980-81.
 - (5) Represented by: Mandatory field, a text box with a limit of 100 characters.
 - (6) Remarks: Mandatory field, alphanumeric field with a limit of 1000 characters.
- vii) After keying in the details, SR allocates to DEO to upload the documents.
 - (1) Court Order: Provision to upload the Court order, A PDF of max size 5 MB.
 - (2) Original Deed: Provision to upload the Original Deed copy, A PDF of max size 5 MB.
- viii) DEO sends back to SR for verification.
- ix) SR verifies the details and clicks the 'Save and Continue' button, and the application will proceed to Step 7 of SR.

4.3 Input and Output Descriptions

Input validations

1. After re-registration, the re-registered document should be stored as a typical document in the respective books.
2. Once the document is re-presented for re-registration, the date of representation is to be considered as if the document were originally presented.
3. In the SR step 7, only the '**Register and send DEO**' button should be active for these documents.
4. Documents without the biometrics are to be registered in as-is condition.

Output validations

1. Cross-reference: A cross-reference to the given application in Book 2 with the final registration number.

Output documents

1. Along with the regular section 60 endorsement, an additional FORM 1 Note(ii) of Schedule B and to be printed.

4.4 Integration with other systems/modules

4.4.1 External integration

This module has no integration with external systems other than what already exists in the document registration module.

4.4.2 Internal integration with other modules

This module has a dependency on Kaveri 1 data.

4.4.3 Implications for MIS

4.4.3.1 Statistical report

Form 40

Section 53A review case details _____ Sub Registrar Office of _____ District for the period of _____ year to _____ year

Input search parameters

District:

SRO:

From Date:

To Date:

Sl. No.	District	SRO	Nature Document	DR/Court Order number	DR/Court Order Date	Appeal Date	Appeal Number	Applicant Name	Date and Disposed	Remarks
1	2	3	4	5	6	7	8	9	10	11

4.4.4 Assumptions

1. To re-register any document which was refused by SR, the document should satisfy the following conditions.
 - a. For Kaveri 2: The application/document must exist in Book 2.
 - b. For Kaveri 1: The application/document must exist in Book 2 or the application must be pending and the Isrefused flag value should be true in DB.
2. The document will be registered as if a new document registered for the very first time.
3. The SR cannot refuse to re-register a document when the orders are issued to register the document by the DR/Court.
4. The system need not track any additional fee payment for re-registration.
5. When re-registering documents that were previously refused in Kaveri 1 (i.e., documents listed as pending in Book 1), any additional pending reasons associated with the document at the time of re-registration will not be considered.
6. J-slips will be handled as mentioned below
 - a. J-slips will be sent the following documents,
 - i. Documents refused in Kaveri 2 and are being re-registered in Kaveri 2.
 - ii. Documents which were refused in Kaveri 1 and are being re-registered in Kaveri 2.
 - b. J-slips will not be sent for the re-registered documents which are refused before Kaveri.
7. To add the missing data, the SR do not need the DR order.

4.4.5 Dependencies

1. **Data migration:** This module deals with documents that have been refused in Kaveri 2, Kaveri 1 and Prior Kaveri 1. Hence, the data migration from Kaveri 1 to Kaveri 2 is to be completed.

4.5 Annexures

4.5.1 Annexure – 1: List of modules of Kaveri 2.0

Sl No	Module No	Main Module	Sub-Module
1	1.1	Registration	Registration
2	1.2		Appointment
3	1.3		Integration module
4	1.4		Stamp duty and Registration fee calculation
5	1.5		Guideline value calculation
6	1.6		Rule 17 (2) filing
7	1.7		Rule 17 (3) filing
8	1.8		Old pending release module
9	1.9		Re-Registration module
10	1.1		Will after Death
11	1.11		Filing documents (FRUITS)
12	1.12		Scanning
13	1.13		Memo transmission and filing
14	1.14		68(2) correction
15	1.15		Cross-reference Rule 123
16	1.16		Integration exemption
17	1.17		Court entry
18	1.18		Liability
19	1.19		Status tracking
20	1.2		Investigation and Search
21	1.21		Valuation Module (CVC)
22	2	EC	
23	3	CC	
24	4	Verify Document	
25	5	Power of attorney Authentication Module	
26	6	Refund Module	
27	7.1	Marriage	Hindu Marriage
28	7.2		Special Marriage
29	7.3		Special Marriage in Other Forms
30	8	Legacy Record Digitisation	
31	9	Audit	
32	10	Accounts	
33	11.1	MIS	Statutory (44)
34	11.2		Statistical (54)
35	11.3		Integration (15)
36	11.4		Computer related (4)
37	11.5		Reconciliation (5)
38	11.6		HR (5)
39	12.1	DRO	Firm Registration
40	12.2		Undervaluation
41	12.3		Deposit of will
42	12.4		Adjudication of documents
43	13	IGRO	Appeal
44	14	Master Data Management	
45	15	User Management	
46	16	Mobile application	
47	17	Training Module	Master Trainer, Training Plan

4.5.2 Annexure- 2: Requirements as shared by the department


Kaveri Online Services
 Department of Stamps and Registration, Government of Karnataka

Test User
 Product Manager

Logout

WELCOME NMG SRO | SR - NELAMANGALA

Re-Registration which is refused in Book2

Enter Book2 Document Number

 Year

Re-Presented By

DR Order Number

DR Order Date

DR Order

Remarks :

Date : ----- Time : -----

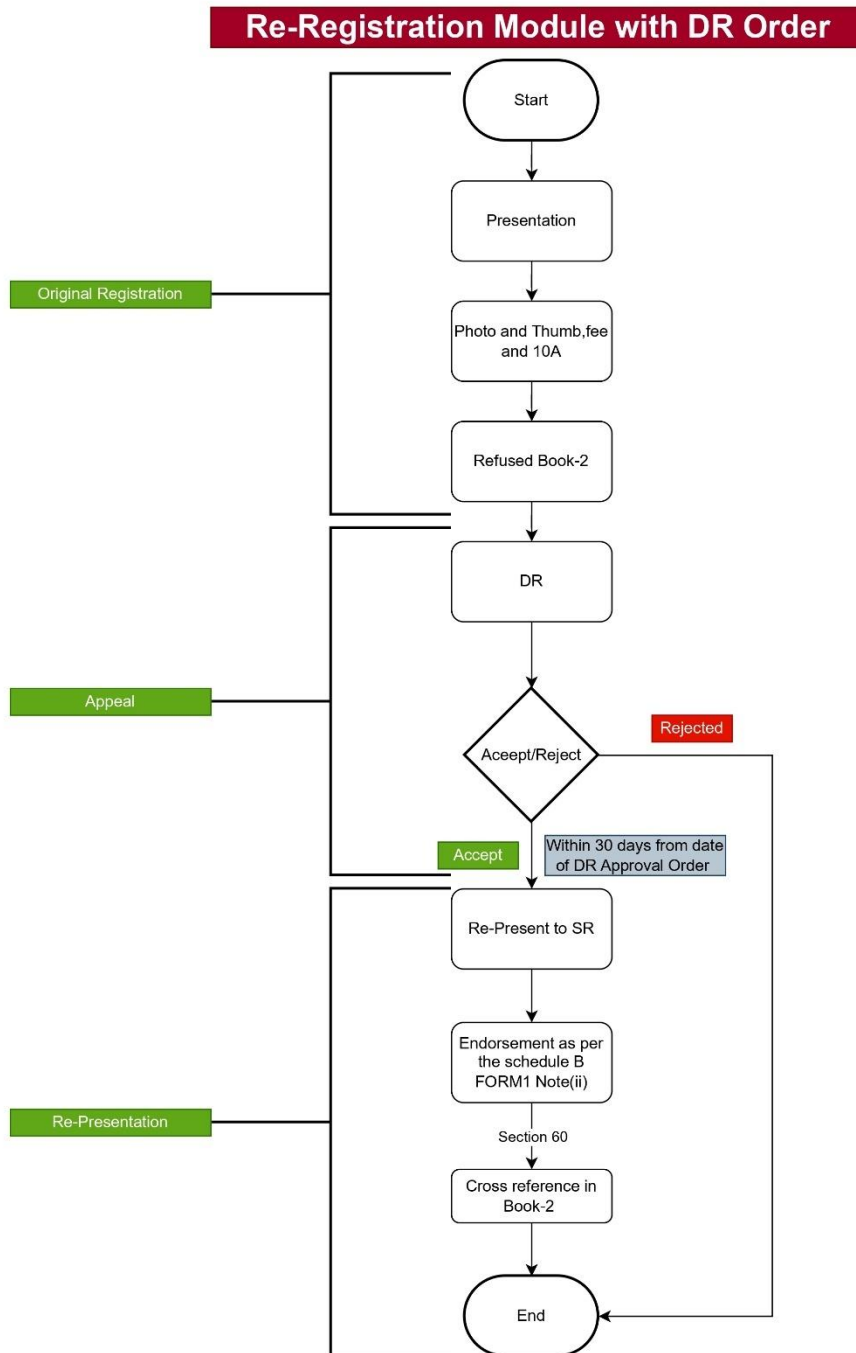
Presented again in the office of the Sub-Registrar of ----- between the hour of ----- and ----- on ----- . Under the order/decreed of the Registrar/Court of dated ----- passed in Appeal/Suit No ----- of ----- by -----

Signature of Registering Officer.



1 ನೇ ಪುಸ್ತಕದ ದಸ್ತಾವೇಜು
 ನಂಬರ್ NMG-1-00010-2023-24 ಆಗಿ
 ದಿನಾಂಕ 06/04/2023 ರಂದು ನೋಂದಾಯಿಸಿ ವಿದ್ಯುನ್ಮಾನ
 ಮಾದರಿಯಲ್ಲಿ
 ಕೇಂದ್ರಿತ ದತ್ತಾಂಶ ಕೋಶದಲ್ಲಿ ಶೇಖರಿಸಿದೆ.
 ಉಪನೋಂದಣಾಧಿಕಾರಿ
 ನೆಲಮಂಗಲ

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4.5.3 Annexure – 3: Clarificatory questions and departmental response

1. **What are the implications for citizen login? Section 23A of the act deals explicitly with Re-registration and suggests that the use case for re-registration is due to a citizen contesting the validity of an already registered document. In such cases, re-registration seems to have the effect of a cancellation. Should there be a citizen service to appeal any document registration?**

There is no question of cancellation of the document with reregistration. Citizens' appeal against refusal by SR and the subsequent application for re-registration will be possible only after the development of DR suite.

2. **Does this module have a dependency on the DR suite module which deals with appeals against the refusal to register by SR?**

Yes, there is a dependency on the DR Suite Module to appeal refused document registrations.

3. **The DR order number is likely to be generated online by Kaveri 2. Is there a necessity to upload the order? Will not referencing the DR order number suffice?**

Yes, this will be the workflow after the development of the DR suite. Till then, the DR order copy will not be digitally available and will have to be scanned uploaded and entered.

4. **Should there be a notification to the presenter intimating about the DR decision? Is there an automatic trigger to re-present the application either for the citizen or for the SR?**

This will be handled in the DR Suite module.

5. **For fee calculations, the FRS shared by the Department states that there must not be any delay condonation if the document is re-presented within 4 months of the DR order. However, it also states that the document can be re-presented within 30 days from the date of the DR's approval. Please confirm⁶.**

This scenario does not arise.

6. **What are the implications for EC and CC search? As per section 71, there are no implications for EC search and a document number is generated afresh. However, as per section 23A, an existing document number must be cancelled. How should this be reflected in the EC and CC search?**

During reregistration, a document number is generated exactly in the same manner as it is done for a usual document registration. However, the application number is the same as that of the original application. The document so generated must be shown in the EC and CC search.

7. **How must we deal with legacy documents?**

- a. **Are there refused registrations of Kaveri 1(in SR Book 2) which might come up for re-registrations?**

⁶ Page 51 of FRS prepared by department dated October 2012.

"Alternate Scenario 12: Re-registration on order of DR after appeal and enquiry.

SR will register the document as usual after such order is issued by DR. The system should not mandate for delay condonation in such cases if the document is presented for re-registration within 4 months of the DR order/Court Order."

Yes, any of the refused documents for registration of Kaveri 1 that are stored in Book 2 (refusal Endorsement) might come up for re-registration.

b. Are there refused registrations of pre-Kaveri which might be submitted for re-registration?

Yes, any of the refused registrations of pre-Kaveri might also be submitted for re-registration.

8. What output documents must be generated?

Once the re-registration process is done. Endorsement will be generated as per Schedule B FORM 1 Note(ii).

The final Endorsement contains the following details

- 10-A Certificate
- Registration Summary
 - Exemption/denoting (if any)
 - Presentation Endorsement
 - Party Information
 - identifying witness information
- Schedule B FORM 1 Note(ii)
- Section 60 Certificate.

4.5.4 Annexure – 4: Excerpts of relevant statutory sections

To re-register the refused documents -

Under the Karnataka Registration Act, 1908. **Sections 71⁷, 72 and 73** - Refusal to register document - Appeal to Registrar - Limitation - Held, 30 days from date of refusal.

Sections 72 - Appeal to Registrar from orders of Sub-Registrar refusing registration on a ground other than the denial of execution.-(1) Except where the refusal is made on the ground of denial of execution, an appeal shall lie against an order of a Sub-Registrar refusing to admit a document to registration (whether the registration of such document is compulsory or optional) to the Registrar to whom such Sub-Registrar is subordinate, if presented to such Registrar within thirty days from the date of the order; and the Registrar may reverse or alter such order.

(2) If the order of the Registrar directs the document to be registered and the document is duly presented for registration within thirty days after the making of such order, the Sub-Registrar shall obey the same, and thereupon shall, so far as may be practicable, follow the procedure prescribed in Sections 58, 59 and 60; and such registration shall take effect as if the document had been registered when it was first duly presented for registration.

Section 75⁸ - Order by Registrar to register and procedure thereon.-(1) If the Registrar finds that the document has been executed and that the said requirements have been complied with, he shall order the document to be registered.

(2) If the document is duly presented for registration within thirty days after the making of such order, the Registering Officer shall obey the same and thereupon shall, so far as may be practicable, follow the procedure prescribed in Sections 58, 59 and 60.

(3) Such registration shall take effect as if the document had been registered when it was first duly presented for registration

⁷ Vide section 72 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023

⁸ Vide sections 75 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023
Vide section 76 of the Karnataka Act, 1908 from the Karnataka Registration manual 2023

4.5.5 Annexure – 5: Reference Templates

4.5.5.1 Endorsement

containing the details that are typically available in a Usual document registration process Procedure.

- 10-A Certificate
- Registration Summary
 - Exemption/denoting (if any)
 - Presentation Endorsement
 - Party Information
 - identifying witness information
- Schedule B FORM 1 Note(ii)⁹
- Section 60 Certificate

4.5.5.2 Sample FORM 1 Note(ii) of Schedule B

Date: 26-10-2024

Time: 13:15:24

Presented again in the office of Sub-Registrar of **Rajajinagar** between the hours of **13:15:24** and on **26th October 2024**. Under the **order**/decree of the **Registrar/Court**, dated **26-10-2024**, passed in appeal number **125/2024-25**.

Signature of Registering Officer

⁹ As per section 52 and Rule 94(ii) of The Karnataka Registration Manual 2023

4.5.6 Annexure – 6: Additional requirements to consider the refused documents of Kaveri 1 and Prior Kaveri.

From: Technical Consultant PM-2 <tc2@karnataka.gov.in>
 Sent: 27 August 2024 11:30
 To: Rajesh Hanbal <rajesh.hanbal@csgekarnataka.in>
 Cc: Saurabh Bhattacharya <saurabh.bhattacharya@csgekarnataka.in>; Executive Director CSG <edcsg@karnataka.gov.in>; Arugolli Subhash <arugolli.subhash@csgekarnataka.in>; Yeshwanth V Gururkar <yeshwanth.gururkar@csgekarnataka.in>; Pavan Kumar Deshpande <pavan.deshpande@csgekarnataka.in>; Project Manager (Kaveri) <pm.kaveri@karnataka.gov.in>; Project Manager New Initiative <pm.ni@karnataka.gov.in>; Assistant Inspector General Registration (Computers) <aigrcomp@karnataka.gov.in>; DBA <dba.kaveri@karnataka.gov.in>
 Subject: Re: **Reregistration** FRS

Dear Rajesh,

In general, the re-registration module should handle the book 2 documents regardless of number of documents in Kaveri1.

However, we have noticed 19 documents with book 2 registered in Kaveri 1 and data is in DB ECDATA. We have also noticed that 707 book 2 documents pending in Kaveri1. These documents can be found in the DB ECDATA_PENDOS.

There are documents kept pending in Kaveri1 as book1. But the court or DR order specifies that document is book2. In this scenario, the book1 should be handled as book2 in Kaveri2. For your reference, the ticket 36296 shows such scenario.

Hence we are requesting you to handle this or any other scenarios dynamically in future.

Regards,
 Naveen Dayalan
 Technical Consultant II

Technical Consultant PM-2 <tc2@karnataka.gov.in>
 To: ○ Rajesh Hanbal
 Cc: ○ Saurabh Bhattacharya: Executive Director CSG <edcsg@karnataka.gov.in>; ○ Arugolli Subhash; ○ Pavan Kumar Deshpande; ○ Dr. DILEESH SASI; +4 others

Wed 2024-08-28 11:13

Flagged

Dear Rajesh,

In addition, please do handle Prior Kaveri Book 2 document scenarios as well.

Regards,
 Naveen Dayalan
 Technical Consultant II
 KAVERI Project Management Unit,
 Department of Stamps & Registration,
 Bengaluru, Karnataka
 Email Id: tc2@karnataka.gov.in

Clarificatory questions and department response.

1. Do DR orders in case of a successful appeal or both successful and unsuccessful appeals?

Yes, DR will give an order for both successful and unsuccessful appeals. If the appeal is successful then DR redirects SR to re-register else if the appeal is unsuccessful DR holds SR's decision to refuse the document.

2. Do we need to capture the biometrics of the executants of Kaveri 1 and prior Kaveri documents?

No, Documents are to be re-registered in as-is condition.

3. Do we need to collect any fees or penalties for re-registration?

No fees are to be collected.

4. What happens to the document in book 2 once it's registered? Do we need to retain it in Book 2?

The entry in Book 2 will have a cross-reference number in the remarks section.